

PRIVILEGED AND CONFIDENTIAL
ATTORNEY-CLIENT COMMUNICATION

June 17, 2026

Anthony Sodono III, Esq.
McManimon, Scotland & Baumann, LLC
75 Livingston Avenue, Suite 201
Roseland, New Jersey 07068

Re: My Chapter 7 / B.B. v. Mell, ESX-L-7200-19 — Factual Defense to Any Willful and Malicious Injury Claim

Dear Anthony,

You are quarterbacking this, and I am not going to pretend to know the bankruptcy side better than you do. What I can do is hand you the one thing I have spent years buried in: the actual record of the civil case. I have read every deposition, every order, every text, every expert report. I know where the bodies are buried and, more to the point, I know where Bruce Nagel has buried evidence that does not help him. Everything I reference in this letter is attached behind a tab so you have it in one place.

This letter lays out the factual defense to any claim that I caused B.B. willful and malicious injury. I understand that to keep this debt from being discharged, Nagel has to prove I acted with the actual intent to injure her, or with substantial certainty that she would be injured. Not that I did something wrong. Not that the law says a fifteen-year-old cannot consent. He has to prove I meant to hurt her, or that I was substantially certain I would. I do not believe the record lets him do that, and below I explain why, using the evidence his own side developed.

I am also going to give you my honest read on where Nagel has some footing, because I would rather you hear it from me than get surprised by it. And I am going to tell you what years of dealing with this man have taught me about how he operates, because I think it bears directly on how this plays out.

One point on her age, because it matters to me

Before anything else, my position has always been that the relationship occurred after B.B. turned sixteen. I understand that everyone else — the Appellate Division, the criminal pleas, certainly Nagel — has treated her as fifteen. I want you to know that in the civil case the merits were never tried, so that "fifteen" has never actually been adjudicated as a fact against me; it has only ever been alleged or assumed. The December 2017 text I discuss below is consistent with my position on the timeline. In the long run I do not think the age question changes the dischargeability analysis either way, because the intent standard is the same regardless. But it matters to me, and I want you operating with my actual position rather than Nagel's version of it.

I will add one further point on this. In the federal criminal case, I raised a challenge through post-conviction counsel to the travel count under 18 U.S.C. § 2423(b), arguing that the Information itself did not allege a crime because the New York trip occurred on August 23, 2017 — three weeks after B.B.'s sixteenth birthday — and the age ceiling under § 2243(a)(1), which defines illicit sexual conduct for purposes of § 2423(b), is sixteen, not seventeen or eighteen. That challenge was filed as a supplemental § 2255 motion. The motion was ultimately not pursued to conclusion, and the conviction stands. I am not asking you to litigate that question. But I want you to know that my position on the facts has been consistent throughout, I acted on it in post-conviction proceedings, and the plea I entered reflected the advice of counsel under circumstances I have always disputed rather than a factual admission that the elements of that charge were met.

The relationship was not what the complaint paints, and the record proves it

B.B. and I were involved for roughly two months in the fall of 2017. That is not my characterization. That is hers, in her own words, written to her sister three days after it ended and long before any lawyer was involved (**Exhibit A**). When her sister asked how long we had been together, she answered, "Like 2 months," and added, "But we didn't even see each other that much." Then, without being asked, she volunteered: "Also I stopped. I said I didn't want to do any of this anymore like a month ago. And that is the truth."

25414	Instant Messages	incoming		12/4/2017 19:16(UTC-5)	From: +19084489156 Ella Cannon	Where were you	
25415	Instant Messages	incoming		12/4/2017 19:17(UTC-5)	From: +19084489156 Ella Cannon	And what photos	
25416	Instant Messages	outgoing		12/4/2017 19:22(UTC-5)	From: +19083702175 Lily	There was one selfie of us	
25417	Instant Messages	outgoing		12/4/2017 19:22(UTC-5)	From: +19083702175 Lily	Not wearing shirts but you can't actually see anything inappropriate but you can tell	
25418	Instant Messages	incoming		12/4/2017 19:23(UTC-5)	From: +19084489156 Ella Cannon	Where	
25419	Instant Messages	outgoing		12/4/2017 19:25(UTC-5)	From: +19083702175 Lily	It was of us standing up. Can't tell where but it was in McTow	
25420	Instant Messages	incoming		12/4/2017 19:34(UTC-5)	From: +19084489156 Ella Cannon	Like a hotel?	
25421	Instant Messages	outgoing		12/4/2017 19:36(UTC-5)	From: +19083702175 Lily	Yes, it	
25422	Instant Messages	incoming		12/4/2017 19:37(UTC-5)	From: +19084489156 Ella Cannon	Ok	
25423	Instant Messages	outgoing		12/4/2017 19:39(UTC-5)	From: +19083702175 Lily	I'm sorry w	
25424	Instant Messages	incoming		12/4/2017 19:39(UTC-5)	From: +19084489156 Ella Cannon	I don't understand why	
25425	Instant Messages	incoming		12/4/2017 19:39(UTC-5)	From: +19084489156 Ella Cannon	How long were u together	
25426	Instant Messages	outgoing		12/4/2017 19:41(UTC-5)	From: +19083702175 Lily	Like 2 months	
25427	Instant Messages	outgoing		12/4/2017 19:41(UTC-5)	From: +19083702175 Lily	But we didn't even see each other that much	
25428	Instant Messages	incoming		12/4/2017 19:42(UTC-5)	From: +19084489156 Ella Cannon	Hmm	
25429	Instant Messages	outgoing		12/4/2017 19:42(UTC-5)	From: +19083702175 Lily	Also I stopped. I said I don't want to do any of this anymore like a month ago	
25430	Instant Messages	outgoing		12/4/2017 19:42(UTC-5)	From: +19083702175 Lily	And that is the truth	
25431	Instant Messages	incoming		12/4/2017 19:42(UTC-5)	From: +19084489156 Ella Cannon	That's good	
25432	Instant Messages	outgoing		12/4/2017 19:43(UTC-5)	From: +19083702175 Lily	I'm sorry	
25433	Instant Messages	incoming		12/4/2017 19:43(UTC-5)	From: +19084489156 Ella Cannon	Yeah	
25434	Instant Messages	incoming		12/4/2017 19:45(UTC-5)	From: +19084489156 Ella Cannon	I really hope ur still not with him	
25435	Instant Messages	incoming		12/4/2017 19:45(UTC-5)	From: +19084489156 Ella Cannon	When did this start	
25436	Instant Messages	outgoing		12/4/2017 19:45(UTC-5)	From: +19083702175 Lily	I'm not, I swear. The last time we were together was November 10	
25437	Instant Messages	outgoing		12/4/2017 19:45(UTC-5)	From: +19083702175 Lily	And that was when I said I don't want to anymore	

Exhibit A — Text exchange, B.B. to her sister, December 4, 2017 (civil discovery)

Read those messages carefully, because they are the most honest thing in the entire record. She describes a short relationship. She says we barely saw each other. And she says she ended it herself, on her own decision. Those are not the words of someone describing an assault she was powerless to escape. They are the words of a teenager describing the end of a relationship she chose to walk away from.

The contemporaneous therapist notes say the same thing in a different register (Exhibits F–H). In early 2018 she told her counselor she only wanted me "to go away for 3-6 months." She was angry at the FBI because, in her words, they "don't like her because she downplayed what happened." Months and years later she was recorded as "still angry at him and still misses him," and as being upset "to remember all the things they did and the places they went." Whatever else those notes show, they do not show a young woman who experienced this as someone deliberately setting out to destroy her.

I am not saying she was not affected. I am not the one to minimize her feelings and I am not going to try. The point is narrower and it is the only point that matters for the intent question: nothing in this record shows that I acted with the purpose of injuring her, or that I was substantially certain I would. And nothing ever will. The record shows the opposite of a predatory campaign. It shows a relationship that, from her own contemporaneous account, she understood as something she participated in and ended on her own terms.

The "she cannot legally consent" argument is true and beside the point

Nagel's entire posture rests on one move, and you should see it coming because he makes it constantly. He says: she was a minor, she cannot consent as a matter of law, therefore consent is irrelevant and the conduct is by definition an injury. He is right about the law of consent in a statutory sense. He is wrong that it answers the question in front of you.

The legal incapacity of a minor to consent is a rule about civil and criminal liability. It is not a finding about what was in my head, or even about what she felt. Teenagers, including teenagers who cannot legally consent, engage in sexual activity of their own volition all the time. The Supreme Court itself has said so. See *Ashcroft v. Free Speech Coalition*, 535 U.S. 234, 247 (2002) ("It is, of course, undeniable that some youths engage in sexual activity before the legal age, either on their own inclination or because they are victims of sexual abuse. Both themes—teenage sexual activity and the sexual abuse of children—have inspired countless literary works... William Shakespeare created the most famous pair of teenage lovers, one of whom is just 13 years of age. In the drama, Shakespeare portrays the relationship as something splendid and innocent, but not juvenile.") (Kennedy, J.). That is the uncomfortable factual reality the statutory rule deliberately papers over, and for good reason in the criminal context. But the intent question does not ask whether she could legally consent. It asks whether I intended to injure her, or was substantially certain I would.

This is the keystone, so let me put it as plainly as I can. The willful-and-malicious standard is met only if I acted with the purpose of injuring her or with substantial certainty that injury would result. Both of those are measured from inside my own head, at the time. And here is the thing nobody can get around: nobody believes they are injuring a willing participant. A person who reasonably understands the other person to be a willing participant does not act with substantial certainty of causing injury, because the perceived willingness is exactly what negates the certainty of harm. That is why her apparent willingness is not a moral defense of what I did — it is direct evidence of my state of mind, which is the only thing the statute actually asks about.

And that is why what Nagel did in her deposition is so revealing. In the civil deposition he physically would not let her answer the consent questions (**Exhibit E**, B.B. Dep. 31:24–32:11; 65:2–3). When my counsel asked "was that consensual," Nagel cut in: "Objection. Hold on... As a matter of law — don't answer that question, Lilly." When the questioning turned to whether she ever said no, he again directed her not to answer, and told the court "She was 15. You can't ask." He called the court and

argued at length that the defense could not be permitted to ask. Think about what that means. The single subject he walled off is the one subject that bears directly on what I would have perceived, and what I would have perceived bears directly on whether I was substantially certain I was causing harm. He did not block those questions to spare her discomfort alone. He blocked them because the answers go to the element he has to prove, and he knows which way they cut. He suppressed the very evidence that bears on my intent. That instinct of his — to bury the factual record behind a legal label — is the tell.

The record on my intent is essentially a clean slate — and that helps us

There is something about the shape of this record you should appreciate, because it is unusual and it favors us. On the question of my subjective intent toward B.B., the record contains my criminal pleas and almost nothing else. On the advice of my criminal counsel, because my criminal matter is on appeal, I declined to testify about the relationship itself at my civil depositions (Exhibits B–D). I answered freely about the businesses, the trusts, the family, and my third-party claims, but on the relationship I asserted the protection my criminal lawyers told me to assert.

The practical consequence is this. The only things on the record about my conduct are the criminal pleas, and those establish the acts, not any intent to injure. There is no statement from me of any purpose to harm her, because I gave none. Meanwhile B.B. was deposed extensively about nearly everything — except the one subject, consent, that her own lawyer walled off. So the evidentiary record on my intent is essentially empty on my side and deliberately incomplete on hers, and the person who created both of those gaps is Nagel: nothing from me he could use, and nothing from her on the subject he blocked. To win nondischargeability he has to prove subjective intent to injure, and he has to do it with a record that contains no direct evidence of it and that he himself made sure would stay that way.

The criminal convictions do not carry the intent he needs

I pleaded guilty to one state count of endangering the welfare of a child, N.J.S.A. 2C:24-4(a)(1) (which is being litigated for ineffective-assistance issues right now), and two federal counts: receipt of child pornography, 18 U.S.C. §2252A(a)(2), and travel with intent to engage in illicit sexual conduct, 18 U.S.C. §2423(b). I have served my time for those. But I want you to see clearly what those pleas did and did not establish, because Nagel will wave them around as if they settle everything.

None of those statutes required anyone to prove I intended to injure B.B. Section 2C:24-4(a)(1) turns on engaging in conduct that would impair or debauch the morals of a child — it is about the nature of the conduct, not an intent to cause her psychological harm. Section 2252A(a)(2) turns on knowing receipt of the images. Even §2423(b), the one with "intent" in it, requires intent to engage in sexual conduct, not intent to injure. Every one of those offenses can be committed by someone who never formed any purpose to harm the other person at all. That distinction is exactly the one the bankruptcy courts have drawn: where the underlying statute does not require proof of intent to injure, the conviction cannot supply the willful-and-malicious element by collateral estoppel. See *In re Long*, 528 B.R. 655 (Bankr. W.D. Va. 2015); *Lewis v. Long*, 550 B.R. 294 (W.D. Va. 2016); *In re BASL* (Bankr. E.D. Va. 2018). A conviction that does not require proof of intent to injure cannot manufacture that intent after the fact, and the court is "not permitted to infer such elements solely based on the public policy considerations underlying the antecedent action."

The damages were already measured, and the number is small

Here is a point I think helps you on determining the value of this claim, separate from the intent question. At my federal sentencing I paid \$80,000 in restitution. Federal restitution in these cases is specifically designed to cover the full amount of the victim's losses, and that expressly includes the cost of her psychiatric and psychological care, including care reasonably projected into the future. The government consulted with her and her family, prepared the restitution figure, and the court set it at \$80,000 to make her whole for the cost of treating the harm she suffered.

That number is a useful anchor. If \$80,000 was found sufficient to cover the full cost of her psychological and psychiatric care, including future care, then it becomes very hard to argue that her emotional and mental damages are enormous. The one objective, court-tested figure in this entire record for the cost of her total past and future economic injuries is \$80,000. That matters because Nagel has asserted, consistently for seven years, that this case is worth \$10 million. Set those two numbers side by side. A federal court, after the government consulted with B.B. and her family, determined after full process that \$80,000 covers the full cost of treating her harm for life. Nagel intends to walk into the bankruptcy proceeding and assert a claim roughly one hundred and twenty-five times that figure. When the trustee evaluates a disputed claim, hopefully that spread invites exactly the scrutiny it deserves.

I raised a version of this in state court already. I filed a motion in limine arguing that the federal proceeding had already addressed the compensable harm. The judge denied it without prejudice to renew closer to trial, so it was never decided on the merits, but the

argument is teed up and it is a live one. To the extent Nagel hopes to inflate the claim toward his \$10 million number, he is mostly hoping for punitive damages, and those are constitutionally capped against the compensatory anchor. Against an established figure of \$80,000, even an aggressive punitive multiple does not get him anywhere close to \$10 million. I leave the precise mechanics to you, but the trustee should understand that the figure Nagel has been repeating for seven years has almost nothing under it.

The parents' conduct independently caps the claim value further — and a state court judge has already said so

There is a dimension to this case that I do not think Nagel has fully reckoned with, and I want you to have it because it bears directly on how you evaluate his \$10 million demand.

Lilly's parents — identified in the civil case as D.D. (Mother) and E.E. (Father); their names are Laura and Tony — are third-party defendants in the state case. I filed a third-party complaint against them in August 2023, asserting contribution and indemnification under the New Jersey Child Sexual Abuse Act, N.J.S.A. 2A:61B-1 et seq., and the Joint Tortfeasors Contribution Law, N.J.S.A. 2A:53A-1 et seq. The brief and responsive statement of facts from that proceeding are attached as Exhibits K and L. What they establish is not a sideshow. It is a direct challenge to the value of Nagel's claim. And crucially, on May 15, 2026, Judge Gardner heard oral argument on cross-motions for summary judgment and issued a bench ruling — attached as Exhibit M — that sends Laura and Tony to trial on the contribution and indemnification claims.

Before Lilly — identified in the civil case as B.B. — had any relationship with me whatsoever, her parents knew I had been involved with their older daughter, Ella, identified in the civil case as C.C. They discovered that relationship in February 2016 and admitted in sworn testimony that they knew it was sexual in nature and involved "inappropriate things." (Exhibit K, Preliminary Statement; Exhibit L, ¶1–7.) A reasonable parent severs every tie. Laura and Tony did the opposite. Laura arranged a private meeting with me at the Essex Hunt Club, consoled me, accepted my apology, and agreed to keep the matter quiet — without contacting the police or seeking any legal protection whatsoever. (Exhibit L, ¶8–10.)

From that moment forward, rather than building a wall between me and their younger daughter, they spent the next eighteen months actively facilitating access. In April 2016, Lilly and her younger sister discovered explicit messages and photographs on Ella's phone and immediately brought them to Laura. Laura refused to look at the

evidence and returned the phone to Ella. (Exhibit L, ¶12–14.) In May 2016, Lilly herself approached Laura at a pre-prom party and explicitly warned her that I was "following [her] around" and acting "weird." Laura and Tony dismissed her concern and continued socializing with me at that same event. (Exhibit L, ¶15–16.) That warning — from their own daughter, in real time — was ignored.

Over the following sixteen months the record documents what their acquiescence looked like in financial terms. Laura and Tony accepted private jet flights for their entire family to Maine for a college move-in and again for parents' weekend, and a helicopter extraction from New York City piloted by me after a shopping trip I paid for. (Exhibit L, ¶19(a)–(d); Tr. 12:1–6, May 15, 2026.) They accepted two brokerage accounts I funded with \$25,000 each — one for Laura, one for Ella. (Exhibit L, ¶22.) They accepted my sponsorship of their admission to the Essex Hunt Club. (Exhibit L, ¶23.) They accepted tickets to sold-out Garth Brooks and Zac Brown Band concerts. (Exhibit L, ¶24.) Laura also served as the listing agent for my condominium and collected a commission split. (Exhibit L, ¶25.) Critically, with full knowledge of what they themselves characterized as an inappropriate situation with Ella, they permitted me to fund and facilitate Lilly's private flying lessons at the Somerset Airport, granting me unsupervised access to their younger daughter. (Exhibit L, ¶26; Tr. 13:3–6, May 15, 2026.) They even allowed Lilly and her younger sister to sit alone with me in the cockpit of a private aircraft. (Exhibit L, ¶19(e).) The record supports a conservative estimate of over \$200,000 in cash and in-kind benefits Laura and Tony extracted from me during the period when they were simultaneously facilitating my access to their daughters.

Then, on July 27, 2017 — in close proximity to when Lilly says the sexual relationship with me began — Laura received a \$25,000 direct wire into her personal Chase account, an account opened just four weeks before the deposit arrived. (Exhibit L, ¶21; Tr. 12:7–9, May 15, 2026.) I noted to the court that the wire was made on the phone with Laura and Ella on speaker, with Laura providing her account number. (Tr. 30:19–25, May 15, 2026.) The financial record also shows that after Patrick Whalen filed a motion to compel production of the Chase statements, Laura transferred \$25,000 back into that account in December 2022, and then immediately paid \$25,000 to her own attorney in May 2023. (Exhibit K, Statement of Facts, Section V; Tr. 12:8–21, May 15, 2026.)

What makes this independently significant to Lilly's claimed emotional harm is what Laura did when Lilly began seeing a therapist, Dr. Robinson, in August 2017. Rather than supporting her daughter's treatment, Laura interrogated Lilly about what she had

disclosed. Her concern was not Lilly's wellbeing; it was financial exposure. She sent Lilly text messages asking pointedly whether she had told the doctor "who was paying" for the flying lessons. (Exhibit L, ¶28.) When Lilly confirmed she had, Laura expressed surprise that the doctor "thought it was fine." (Exhibit L, ¶28.) Lilly's response to her mother was: "I'm so confused." (Exhibit L, ¶29.) That is a mother who, rather than helping her daughter process what she was experiencing, was managing her own legal exposure — and in doing so generating independent emotional harm to a child who was already confused and vulnerable.

The cover-up that followed is documented in equal detail. In October 2017, a fellow parent contacted Laura directly to report that Lilly's friends had discovered illicit text messages linking her to me. Laura did nothing. (Exhibit L, ¶31–33.) When the school finally notified the parents on December 4, 2017, they did not go to law enforcement — they retained counsel and opened a settlement channel, demanding \$10 million from me before they would cooperate with investigators. (Exhibit L, ¶47–49.) Text messages from that period explicitly state that pursuing criminal charges would force me to "respond very quickly and more favorably" to their financial demands. (Exhibit L, ¶50.) Laura and Tony delayed Lilly's forensic interview with law enforcement for seventeen days while that negotiation played out. (Exhibit L, ¶43.) During that window, Laura instructed Lilly via text to "delete Snapchat" — destroying the digital record of the relationship — and told her "whatever you do, don't discuss any details of your relationship with anyone" and to "not admit" anything. (Exhibit L, ¶50–54.)

The Mother's November 19, 2017 text to Lilly is perhaps the most revealing document in the entire record. Laura wrote: "I also think he's ready to be done with us. Not get rid of B.B., but done with us, a family unit." (Tr. 13:17–19, May 15, 2026.) I pointed out to the court that the text did not come from a mother who was deceived — it came from a mother who understood exactly what was at stake, and it was not her daughter's safety. (Tr. 13:21–23, May 15, 2026.)

Judge Gardner denied both cross-motions for summary judgment on May 15, 2026, and sent the contribution and indemnification claims to trial. In doing so, he made three findings directly relevant to what you will face in the bankruptcy proceeding. First, on the CSAA acquiescence question: "There's a substantial issue of operative fact here as to whether the parents in fact acquiesced here. And as I said, it may not be direct evidence, but there certainly is circumstantial evidence to at least make an argument of the reasonable inferences against the movant that, in fact, they may have acquiesced in this case." (Tr. 33:20–25, 34:1–2.) Second, on parental immunity: "I don't think that — certainly, the argument here would be that what happened here

certainly does not fall within parental authority — or provision of customary child care." (Tr. 34:11–14.) Third, on willful and wanton conduct: "Whether in fact this rises to the level of willful or wanton I think is a jury question." (Tr. 34:22–23.) A state court judge with seven years of familiarity with this record has now determined that a jury could reasonably find Laura and Tony acquiesced in the conduct, that their behavior falls outside the protection of parental immunity, and that the question of willful and wanton disregard is a jury issue. That is the posture of the third-party claim going into any proceeding that touches the value of Nagel's demand.

The legal consequence, which I leave entirely to your judgment to deploy or hold, is this: under New Jersey's Joint Tortfeasors Contribution Law, Laura and Tony are jointly and severally liable for the indivisible harm Lilly allegedly suffered to the extent their conduct contributed to it. My position — supported by the record and now validated by a state court ruling — is that they are at minimum fifty percent contributorily liable, and arguably more. They possessed actual knowledge of my history with Ella for approximately five hundred days before Lilly's relationship with me began. (Exhibit L, ¶4, 20.) During that entire window they had the absolute power to end it before it started. Instead they took the money, facilitated the access, delayed the investigation, destroyed the evidence, and then demanded \$10 million. The confusion, the gaslighting in therapy, the instructions to delete evidence, the 17-day delay while they negotiated a payout: none of that is attributable to me. Either way, the number that actually lands on me is a fraction of what Nagel has been advertising for seven years. The gap between his \$10 million and the federal restitution figure of \$80,000 becomes even more stark when you factor in that Laura and Tony absorb a substantial share of whatever sits in between.

They just violated the bankruptcy stay — and they did it with full knowledge

I need to put something in front of you that happened just days ago, because it tells you everything about how far out of their depth Nagel Rice is in this forum. On Thursday, June 18, 2026, Michael Paragano of Nagel Rice emailed me directly (**Exhibit I**):

Exhibit I — Email, M. Paragano (Nagel Rice) to S. Bradley Mell, June 18, 2026, 4:58 p.m.

He advised me that "our prejudgment attachment includes any and all vehicles in your possession, including, but not limited to the 1995 Ferrari that you testified to owning during your deposition," and instructed me that "you should not undertake any efforts to remove the vehicle from the state." He sent this to me directly. I am obviously a

represented debtor in an active Chapter 7. He was plainly asserting continued control over property of the estate and directing my conduct over it.

From everything I understand, the moment I filed my petition the automatic stay went into effect, and it bars exactly this kind of thing — any act to exercise control over estate property or to enforce a pre-petition attachment, and any direct collection contact with me. I understand a willful violation of that stay exposes the violator to actual damages, including the attorney's fees I incur in dealing with it, and potentially to punitive damages and the court's contempt power. I will defer to you completely on whether and how to pursue a remedy. But I would genuinely like to pursue something, if for no other reason than to make sure the trustee and the bankruptcy court are fully aware of this, because it speaks directly to their credibility in front of the very people who will weigh their inflated claim.

And here is the part that removes any possibility this was an innocent mistake. Your partner Sari Placona spoke directly with Paragano on June 15. He confirmed to her that even Judge Gardner acknowledged my bankruptcy filing on the record. So as of June 15, Paragano had actual, admitted knowledge of the bankruptcy. Three days later, on June 18, he sent me this email anyway. He did not stumble into this unaware. He knew about the filing, admitted he knew, and then violated the stay regardless. As I understand it, willfulness in this context just means they knew of the stay and intended the act, and they have essentially conceded both.

There is an irony in it too. The attachment he is trying to enforce is a prejudgment attachment from the state case — the same case that was dismissed by the Zunic order, in which, as you noted to me, no order was declared to survive the dismissal. So he violated a federal bankruptcy stay in order to enforce a prejudgment attachment from a dismissed case. The conduct is wrong twice: wrong to contact me at all given the stay and my representation, and questionable on whether that attachment even still binds anything.

I want to be blunt about why this gets under my skin, beyond the legal violation. For years, any time I committed the smallest infraction despite being pro se with no civil court experience, Nagel ran to Judge Gardner and asked for sanctions. They froze one hundred percent of my assets under the attachment, including my ERISA-protected retirement funds that should never have been touchable in the first place. When I asked the court to release enough of my own money to live on, they opposed it and got me sanctioned \$8,000 for asking. Because of that freeze I have not even been able to move my ERISA-protected funds into my 401(k) where they could grow — and given the bull market we have had, that is potentially a great deal of lost

opportunity. That is the standard they held me to. And now, with admitted knowledge of a federal bankruptcy stay, they fire off an email asserting control over my car and ordering me not to move it — an asset which I understand is now in the legal custody of the trustee anyway. The firm that ran to the judge over every minor thing I did just committed one of the most basic violations there is. This is something a second-year law student knows not to do. It is, frankly, a window into how unprepared they are for the forum they are now in.

The parents' pseudonymity may not carry into federal court — and I am asking you to assess and raise it

There is a procedural issue I want to flag and ask you to assess, because I believe Nagel will simply assume it resolves itself and act accordingly.

In the state case, Laura and Tony have litigated from the beginning under the pseudonyms D.D. and E.E. The basis for that anonymity has been that identifying them would effectively identify Lilly, who is herself protected. That argument was accepted in state court, and they have used it throughout the litigation as a shield — hiding their own conduct and identity behind their daughter's privacy interest.

My understanding from civil and criminal federal practice is that federal court applies a meaningfully stricter standard. In the Third Circuit, the default rule is that parties proceed under their real names. See Fed. R. Civ. P. 10(a). Departure from that default requires the court's affirmative authorization, and the controlling standard in civil and criminal federal proceedings is set out in *Doe v. Megless*, 654 F.3d 404 (3d Cir. 2011). Under *Megless*, a party seeking to proceed anonymously must demonstrate that the interest in privacy outweighs the public's presumptive right to know who is litigating in federal court. Embarrassment, social stigma, and reputational harm — even serious reputational harm — are generally insufficient. The parents' derivative argument — that identifying them identifies Lilly — does not automatically satisfy that standard, particularly where Lilly herself can remain protected under a separate pseudonym, which I expect any federal court to order as a matter of course. What I do not know, and what I am asking you to assess, is whether the bankruptcy court applies the same or an equivalent standard in adversary proceedings, or whether a separate framework governs anonymity in that context.

My expectation is that Nagel will not think about this carefully. His pattern, which the Paragano email illustrates perfectly, is to assume that what worked in state court controls everywhere else. He will almost certainly file whatever he files in *In re Mell*, CA-26-16834, simply using D.D. and E.E. without seeking leave of the bankruptcy

court, on the assumption that the state court's practice carries over automatically. If the federal standard applies in any form in the bankruptcy court, that assumption is almost certainly wrong. Leave would be required, and the standard for obtaining it is higher than what the state court applied.

I am strongly asking you to raise this at the appropriate time if you conclude the federal standard applies here. Forcing Laura and Tony to litigate under their real names in a federal proceeding has real consequences for how this plays out. It removes the shield of anonymity from people whose conduct — as the attached exhibits document, and as a state court judge has now confirmed warrants a jury — was commercially calculated and deliberately concealed. It puts their names on a public federal docket alongside the facts in my third-party complaint. And it removes one of the tactical advantages Nagel has relied on throughout this litigation: the ability to present his clients as faceless, sympathetic guardians rather than as the architects of the arrangement the record actually describes. I leave the timing and the precise vehicle entirely to your judgment. But I wanted to flag it now, because if Nagel files without seeking leave, the moment to raise it will come early.

Where Nagel actually has some footing — so you are not surprised

I am not going to pretend our position is airtight. Here is where I think he has his best shots, and what I think the answer is.

His strongest single point is the assault and battery count. The summary judgment was granted on it, and the complaint pleaded that my acts were "intentional and designed to cause harmful and offensive contact." He could argue that battery is an intentional tort and that intent to cause harmful contact is the same as intent to injure. There are two things you should know before you hear that argument from him.

First, the summary judgment on this count was a discovery sanction. Judge Gardner's ruling was procedural, based on my assertion of Fifth Amendment rights during civil discovery while my criminal appeal was pending. It made no factual finding whatsoever about what I intended. There was no testimony taken, no merits analysis, and no adjudication that I acted with intent to harm. The Appellate Division's own opinion confirmed that the summary judgment was entered under those procedural circumstances. That distinction matters enormously in front of a bankruptcy court, which must find willful and malicious injury based on actual evidence of subjective intent — not on a sanction order that deliberately bypassed the merits entirely.

Second, both civil assault and battery require elements that Nagel cannot establish on this record. Battery requires harmful or offensive contact — contact that is unwanted. Assault requires that the plaintiff be placed in apprehension of imminent harmful or offensive contact. A person who is a willing participant is not in fear. A person who is anticipating and welcoming contact is not in apprehension of it. Lilly's own contemporaneous account — in Exhibit A — describes a two-month relationship she understood herself to be participating in and that she chose to end on her own terms. Whatever the statutory rule says about legal capacity to consent, her apparent willingness bears directly on whether the essential elements of civil assault and battery — unwanted contact and reasonable apprehension — can actually be proven on the merits. Those elements have never been tested, because the summary judgment that purports to establish them never reached the merits. That is Nagel's problem, not mine.

His second point is the federal travel plea, because of the word "intent." In a room with a judge, "he traveled across state lines to have sex with a fifteen-year-old" has emotional force whatever the technical law says. The answer is the one above — intent to engage in conduct is not intent to injure — but I know that can feel like a fine distinction in the moment. It helps that criminal mens rea in these statutes attaches to the act, not to any later injury; the crime is provable regardless of whether injury was actually sustained, which is exactly why the conviction proves the act and not the intent to harm.

His third point is the expert, Dr. Hughes (referenced; full report available on request). Her report is serious and sympathetic and documents years of real suffering — although it is notably one-sided and never untangles how much of that suffering traces to conduct other than mine, including a separate assault Lilly has testified she suffered and the role her own parents played in this. The thing I would point out is that nowhere in it does she say I intended to cause that harm. She describes harm that resulted from the conduct. She uses the word grooming, but that describes building trust and access, not a purpose to cause injury. She can arguably establish the harm is real. She cannot say what was in my mind, and she does not try to. Still, in front of a judge who is also a human being, the weight of that report is the hardest thing we face, and I want to be honest with you that it is.

My read on Nagel, for whatever it is worth to you

I have watched this man litigate against me for years, and I want to give you my honest read, because it matters to how this unfolds. Bruce Nagel is a narcissist. He runs on theatrical optics and he wins by inflaming the passions and prejudices of

whoever is making the decision. In state court, with a sympathetic victim and a sex-offender defendant, that approach worked, because the forum rewarded it. He has come to believe he does not need help and cannot be outmaneuvered.

That hubris shows up in how he built the civil case, and it is genuinely instructive. Rather than pursue me cleanly and then deal with collection, he sued every entity in sight, named legally formed trusts (and even my children) as if they were my piggy bank, misunderstood how corporate ownership and shareholder liability work, and even tried to attach corporate assets as though they were my personal property. He sued the entities for negligence and collected what were plainly nuisance settlements. A more disciplined lawyer would have gone after me directly and worried about piercing veils later, if at all. He did not, because the sprawling approach generated activity, billing, and the appearance of aggression. It was theater.

Why this matters for you: a case like mine, in bankruptcy, is precisely where his weaknesses become dangerous to him and where a seasoned bankruptcy specialist would be worth every penny. The points where we are exposed — the battery count, the expert, the emotional weight — are exactly the points a specialist would press hardest and sequence carefully. But reading the tea leaves from how he has run this case for years, my honest expectation is that Nagel will believe he can handle the bankruptcy side himself, the way he believed he could handle everything else. The Paragano email is the first piece of hard evidence that this is exactly what is happening. A firm with competent bankruptcy counsel does not send a represented debtor a direct email enforcing a dismissed-case attachment three days after admitting it knew about the bankruptcy filing. I think he will overvalue his own case, lean on the moral optics that carried him in state court, and underestimate how different this forum is. That is not a prediction I would bet the firm on, but it is my genuine read, and the stay violation suggests it is already coming true.

Bottom line

I am not trying to relitigate what I did. I am trying to give you the truest possible picture of what the record actually shows, so that whatever path you choose, you are choosing it with full command of the facts I have spent years living inside. The intent-to-injure standard is a high one. The contemporaneous record does not support it. The consent evidence Nagel buried goes straight to whether I could have been substantially certain of causing injury, and he buried it for a reason. The record on my own intent is essentially a clean slate. The damages were already measured at a modest number. Laura and Tony's conduct independently accounts for a substantial share of whatever damages exist — and a state court judge has now confirmed that

question goes to a jury. And the man on the other side has a long track record of overplaying his hand.

Tell me what you need from me and I will get it to you. Everything I reference is attached and tabbed so you do not have to dig through thousands of pages. Whatever you decide to do with it, the facts are on our side here, and I wanted you to have them in one place and in plain terms.

With appreciation and respect,

Brad

Privileged and confidential attorney-client communication. The civil-case materials referenced and attached were produced under a confidentiality and sealing order in ESX-L-7200-19. The effect of the June 12, 2026 dismissal order on that seal is unsettled; if any of this is ever placed before the bankruptcy court, it should be submitted under seal.

EXHIBIT INDEX

Exhibit A. Text Exchange — B.B. to Sister, December 4, 2017

B.B.'s own contemporaneous account, sent before any lawyer was involved, describing the relationship as roughly two months, noting they "didn't even see each other that much," and stating she ended it herself a month earlier ("I stopped... and that is the truth").

Exhibit B. Deposition of S. Bradley Mell — September 22, 2021

Debtor's civil deposition. Establishes that, on advice of criminal counsel pending appeal, the debtor declined to testify about the relationship, leaving no on-record statement of intent toward B.B.

Exhibit C. Deposition of S. Bradley Mell — July 27, 2023

Debtor's continued civil deposition, focused largely on the business entities and trusts; debtor again declined to answer questions concerning the plaintiff.

Exhibit D. Deposition of S. Bradley Mell — August 22, 2025

Debtor's further civil deposition. Confirms the debtor's repeated, counsel-advised refusal to testify about the sexual relationship with B.B. given the pending criminal appeal, and documents the Cannon family's continued voluntary association with the debtor.

Exhibit E. Deposition of B.B. — September 24, 2021

Plaintiff's deposition. Contains the colloquy in which plaintiff's counsel (Nagel) objected and directed the witness not to answer any question concerning consent (Tr. 31:24–32:11; 65:2–3), suppressing the testimony most relevant to the debtor's perception and intent.

Exhibit F. Medical/Counseling Records — Dr. Bradley Robinson

Contemporaneous treatment records reflecting, among other things, B.B.'s statements that she wanted the matter resolved with limited consequence and that she "downplayed what happened."

Exhibit G. Medical Records — Dr. Cowen/Hune (March 2020)

Additional treatment records bearing on the nature, sources, and course of B.B.'s reported distress.

Exhibit H. Medical Records — Somerset/Robinson

Further treatment records relevant to the measurement and attribution of B.B.'s claimed psychological injuries.

Exhibit I. Email — M. Paragano (Nagel Rice) to S. Bradley Mell, June 18, 2026

Direct communication to the represented debtor asserting a prejudgment attachment over the debtor's vehicle and directing his conduct over estate property — sent three days after Nagel Rice admitted knowledge of the bankruptcy filing.

Exhibit J. Deposition of Laura Cannon

Mother's deposition, relevant to the open and integrated nature of the families' relationship and the broader factual context bearing on the debtor's state of mind.

Exhibit K. Third-Party Plaintiff's Brief in Support of Motion for Summary Judgment (ESX-L-7200-19)

Brad's pro se summary judgment brief against Laura and Tony (D.D. and E.E.), documenting the 500-day facilitation window, over \$200,000 in benefits extracted, the December 2017 cover-up, and the legal basis for contribution and indemnification under the CSAA and JTCL.

Exhibit L. Responsive Statement of Material Facts — Third-Party Proceeding (ESX-L-7200-19)

Supporting statement of material facts with record citations, establishing Laura and Tony's chronological knowledge, financial benefit, and conduct bearing on comparative fault and claim valuation.

Exhibit M. Transcript of Oral Argument and Bench Decision, B.B. v. Mell, ESX-L-7200-19 (Hon. Robert H. Gardner, J.S.C., May 15, 2026)

Court transcript reflecting Judge Gardner's denial of both cross-motions for summary judgment, his finding that Laura and Tony's conduct does not fall within the provision of customary child care protected by parental immunity, and his ruling that the question of willful and wanton conduct — and CSAA acquiescence — are jury questions. Laura and Tony proceed to trial on the contribution and indemnification claims.